

Amendments & Direct Democracy

The People Legislate Directly - §13.1, §13.2

Optional Referendum

§13.1 · Repeal an enacted law

Two petition phases (State-distributed, then 5% national), then a vote: simple majority repeals, subject to a 30-50% turnout floor set by statute. Off-limits: laws expanding an Article I right, budget laws, constitutionally mandated obligations. A failed referendum can't be re-run on the same grounds for 3 years.

Citizen Initiative

§13.2 · Propose a new law

Two phases (State-distributed, then 10% national). The Legislature must vote within 90 days; if it refuses or fails, the proposal goes to the people - passing at 60% with at least 50% participation. The chamber can't quietly bury a qualified proposal by ignoring it. An enacted initiative that conflicts with the Constitution is reviewable by the SC on petition - void only to the extent of the conflict, not refused outright; a failed initiative can't be re-run on the same grounds for 3 years.

Three Ways to Amend - Thresholds Climb With Permanence - §17.1

Parliamentary · State Ratify

Legislature + States

2/3 · 2/3

2/3 of the full seated membership of both chambers, then ratification by 2/3 of States within the statutory period.

Parliamentary · Popular Ratify

Legislature + the People

2/3 / 2/3

2/3 of both chambers, then a national referendum at 2/3 affirmative, at least 55% participation within 180 days.

Citizen Initiative

The People Alone

15% / 70%

Petition to 15% national, then straight to referendum with no legislative or executive gate - passing at 70% with at least 65% participation. Miss the floor and it's barred 5 years.

What's Entrenched, and the Line No Amendment Crosses - §17.1, §17.3

Entrenched Provisions §17.1

Some provisions can't be changed by the States alone - amending them requires Popular Ratification regardless of origin: the Monitor selection, independence, mandate, and funding guarantees (§9.1-§9.4, §9.6), the NRS architecture (§10.1), and the Elections Panel / NRS Panel independence (§11.1). The watchdogs and the public record can't be quietly weakened by an inter-State deal - the people themselves must consent.

The Unamendable Core §17.3

No amendment - however large its majority - may extinguish a §1.19.a non-derogable right. Any amendment purporting to do so is void to the extent of the extinguishment, and the SC must so rule. An amendment that meets its thresholds otherwise can't be refused, and takes only prospective effect. The JM publishes a consistency analysis of every amendment - advisory, but a permanent record of exactly what changed, and no parliamentary ratification vote may be held before it's published or 30 days pass, whichever comes first.

Numbers Worth Remembering

0

executive role in amendments - no signature, no veto (§17.2). Consuls are absent from the process entirely.

2

amendments may run at once; if both pass, the later-ratified prevails on conflict (§17.3).

70%

the ceiling: citizen-initiated amendment passage, at least 65% participation - the hardest bar in the document.

§17.4

supremacy - every act, order, treaty, and decision must conform; anything inconsistent is void.